

**HIGH COURT OF TRIPURA  
AGARTALA**

**WP(C) No.819 of 2024**

1. Smt. Shibani Shil Ghosh, W/o Sri Sunil Ghosh, R/o Vill- South Jolaibari, PO- Jolai Bari, Dist- South Tripura, 799141 (Age-54 years)
2. Sri Sunil Ghosh, S/O- Late Nakul Chandra Ghosh, R/O Vill-South Jolaibari, PO- Jolai Bari, Dist- South Tripura, 799141

.....Petitioner(s);

Versus

1. Tripura Gramin Bank, represented by its Manager, (Authorized Officer), Regional Office (South) Udaipur, Central Road, R.K. Pur, Udaipur, Gomati Tripura-799120
2. Tripura Gramin Bank, represented by its Manager, Jolaibari Branch, PO- Jolaibari, South Tripura
3. Tripura Gramin Bank, represented by its Authorized Officer, Debt Recovery Cell, Radha Nagar, Agartala, West Tripura

.....Respondent(s).

For Petitioner(s) : Mr. D. Sarkar, Advocate,  
Ms. P. Goswami, Advocate.

For Respondent(s) : None.

**HON'BLE THE CHIEF JUSTICE MR. APARESH KUMAR SINGH  
HON'BLE MR. JUSTICE S.D. PURKAYASTHA**

**Order**

**06/01/2025**

Heard Mr. D. Sarkar, learned counsel for the petitioners. Petitioner No.1 is the borrower and Petitioner No.2 is the guarantor. They are husband and wife.

2. Against a Sabalamban loan taken in the year 2011 from the respondents-Tripura Gramin Bank, Jolaibari Branch bearing account No.8056303100007 for an amount of Rs.4,75,000/-, the respondents-Bank has initiated proceedings for recovery under SARFAESI Act, 2002 [hereinafter referred to as "Act of 2002"] by issuance of notice under Section 13(2) of the Act of 2002 on 03.07.2023 intimating the petitioners to repay an amount of Rs.3,98,921/- which has become outstanding upto 31.12.2020 within 60(sixty)

days from the date of receipt of the notice. The notice was responded to by a reply by the petitioners on 06.07.2023. However the Bank apparently did not accept the explanations furnished by the petitioner No.1-borrower and issued possession notice on 30.10.2023 to the petitioners which was given in equitable mortgage duly described as 0.23 acres of land under Mouja & Tehsil- Jolaibari, Khatian No.2812, Dag No.5410/7057 (Sabek), 8043 (Hal) vide registered Sale Deed No.1-218 dated 03.02.1998. Thereafter vacation notice was issued on 22.07.2024 [Annexure-E] upon the petitioner No.2 on failure to repay the outstanding dues with interest plus other charges, costs in full towards the loan account within a period of 60 days as per the notice under the Act of 2002. Petitioner made a representation thereto vide legal notice dated 29.07.2024. According to the petitioner, the same remained unredressed. Thereafter another reminder vacation notice has been issued on 12.12.2024 [Annexure-G] to the same effect to petitioner No.1 asking the petitioner to clear the dues in full within 10 days from the date of the notice to avoid taking over of physical possession of the immovable properties. Being aggrieved by the notice dated 03.07.2023 under Section 13(2) of the Act of 2002, the possession notice dated 30.10.2023 and the vacation notice dated 22.07.2024 and 12.12.2024, petitioners have approached this Court.

3. Mr. D. Sarkar, learned counsel for the petitioners, has submitted that petitioners are people who are below poverty line. They are ready and willing to pay the original loan amount and settle the dispute instead of being evicted from their only homestead land. However, the Bank has not been responding to their representations. Therefore, they have been compelled to

move this Court. He further submits that petitioners are ready to pay the outstanding amount of Rs.3,98,921/- as per the 13(2) notice, but the amount has swelled up because of accrual of interest. If the Bank may sympathetically consider waiver of interest, petitioners' request to repudiate the principal loan amount totaling Rs.3,98,921/- as per Section 13(2) notice may be accepted.

4. We have considered the submission of learned counsel for the petitioners. The Act of 2002 provides for statutory remedy under Section 17 thereof against any of the actions taken under Section 13(4) of the Act of 2002 after the Bank has complied with the requirement of Section 13(2) notice and consideration of the reply of the borrower/guarantor. The 13(2) notice was issued in favour of the petitioners way back on 03.07.2023. Petitioners have approached this Court as late as 18.12.2024. Much water has flown down in the meantime as further actions under Section 13(4) by issuance of possession notice dated 30.10.2023 and vacation notices dated 22.07.2024 and 12.12.2024 have also been issued. In the present stage of pleadings, it is not clear as to how much is the outstanding amount due against the petitioners including the interest which has accrued after issuance of Section 13(2) notice. In the light of the principles laid down by the Apex Court in this regard such as in the case of **United Bank of India v. Satyawati Tondon and Others** reported in (2010) 8 SCC 110 and the later decisions in the same line, interference by this Court at this stage in a writ proceeding would not be desirable. The petitioners, if aggrieved by any of the actions of the respondents-Bank taken under Section 13(4), may approach the learned Debt Recovery Tribunal having the jurisdiction of the subject matter under Section 17 of the Act of 2002. As such,

this Court is not inclined to interfere in the matter. Petitioners are at liberty to invoke the forum of the Debt Recovery Tribunal if aggrieved by any of the actions of the respondents-Bank in the SARFAESI proceedings for recovery of the outstanding loan amount along with interest as is permissible in law. Otherwise if the petitioners have approached the respondents-Bank with a request for repudiation of the loan and waiver of certain interest amount, it is open to the respondents-Bank to consider such request in accordance with law and the scheme framed by the Bank for settlement of loan amount against such non-performing assets and/or as per the Reserve Bank of India guidelines. Therefore, petitioner may pursue her representation before the concerned Bank if the authorities of the respondents-Bank are inclined to entertain such a request in accordance with law and the scheme of the Bank. Needless to say, if the authorities of the respondents-Bank are inclined to consider the request of the petitioner, they may not be restrained in doing so even though possession notice and vacation notices have been issued against the petitioners since even the vacation notices also indicate that the petitioners may clear the dues in full within 10 days from the date of the notice to avoid taking over of physical possession of the immovable property by the Bank.

5. With these observations, the instant writ petition is disposed of.

**(S.D. PURKAYASTHA), J**

**(APARESH KUMAR SINGH), CJ**

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